

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000401-2025

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Carmelo Martinez

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CASE INFORMATION

<u>Judge Assigned:</u> Kamau, Nicholas	<u>Date Filed:</u> 01/16/2025	<u>Initiation Date:</u> 01/16/2025
<u>OTN:</u> U 322232-1	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0025345-2024
<u>Initial Issuing Authority:</u> Karen Y. Simmons	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Murphy, Conor	
<u>Complaint/Citation No.:</u> 2435052767-0025345	<u>Incident Number:</u> 2435052767	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0025345-2024	
District Control Number	2435052767	
Originating Document Number	2435052767-0025345	

STATUS INFORMATION

<u>Case Status:</u> Closed	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 12/31/2024
	05/20/2026	Completed	
	02/19/2026	Awaiting Post Sentence Motion Hearing	
		Disposition	
	02/09/2026	Sentenced/Penalty Imposed	
	01/09/2026	Awaiting PSI	
	01/09/2026	Awaiting Sentencing	
	10/17/2025	Awaiting PSI	
	10/17/2025	Awaiting Sentencing	
	10/17/2025	Awaiting Sentencing	
	07/08/2025	Awaiting Trial Readiness Conference	
	03/13/2025	Awaiting Trial Readiness Conference	
	02/18/2025	Awaiting Scheduling Conference	
	01/24/2025	Awaiting Pre-Trial Conference	
	01/16/2025	Awaiting Filing of Information	

Complaint Date: 12/31/2024

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/29/2025	11:00 am	1104	Trial Commissioner Cierra Adkins	Scheduled
Pre-Trial Conference	02/18/2025	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	03/13/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Motions Hearing	05/05/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Motions Hearing	06/02/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	07/02/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Jury Trial	07/08/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Bail Hearing	09/19/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Bail Hearing	09/26/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	10/02/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Jury Trial	10/14/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	10/15/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	10/16/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Jury Trial	10/17/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Add-On/Psychiatric Evaluation	12/17/2025	11:00 am	Mental Health Clinic		Scheduled
Sentencing	01/09/2026	9:00 am	808	Judge Nicholas Kamau	Continued
Sentencing	02/09/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
05/14/2026	State Correctional Institution	SCI Laurel Highlands		Yes

DEFENDANT INFORMATION

Date Of Birth: 06/12/1973 City/State/Zip: Philadelphia, PA 19133

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Martinez, Carmelo

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BAIL INFORMATION

Martinez, Carmelo

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	01/01/2025	Monetary	Municipal Court	10.00%	\$300,000.00
Set	01/16/2025	Monetary	Common Pleas	10.00%	\$1,000,000.00
Revoke	09/26/2025	Monetary	Common Pleas	10.00%	\$1,000,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1	F1	18 § 3121 §§ C	Rape of Child	08/12/2024	U 322232-1
2	2	F1	18 § 3123 §§ B	Invol. Deviate Sexual Intercourse W/Child	08/12/2024	U 322232-1
3	3	F1	18 § 6318 §§ A1	Unlawful Contact With Minor - Sexual Offenses	08/12/2024	U 322232-1

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversory Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/15/2025	Not Final
1 / Rape of Child	Held for Court	F1 18 § 3121 §§ C
2 / Invol. Deviate Sexual Intercourse W/Child	Held for Court	F1 18 § 3123 §§ B
3 / Unlawful Contact With Minor - Sexual Offenses	Held for Court	F1 18 § 6318 §§ A1

Proceed to Court

Defendant Was Not Present

Information Filed	01/30/2025	Not Final
1 / Rape of Child	Proceed to Court	F1 18 § 3121 §§ C
2 / Invol. Deviate Sexual Intercourse W/Child	Proceed to Court	F1 18 § 3123 §§ B
3 / Unlawful Contact With Minor - Sexual Offenses	Proceed to Court	F1 18 § 6318 §§ A1

Guilty

Jury Trial	10/17/2025	Final Disposition
1 / Rape of Child	Guilty	F1 18 § 3121 §§ C
Kamau, Nicholas	02/09/2026	
Confinement	Min of 10.00 Years	
	Max of 20.00 Years	
	10 to 20 years	

Defendant sentenced to 10 to 20 years of state incarceration on count #1 to run consecutive with CP-51-CR-0000402-2025. No Further Penalty on count #2 and count #3. Tier III Offender

2 / Invol. Deviate Sexual Intercourse W/Child	Guilty	F1 18 § 3123 §§ B
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DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
Kamau, Nicholas	02/09/2026	
No Further Penalty		
3 / Unlawful Contact With Minor - Sexual Offenses	Guilty	F1 18 § 6318 §§ A1
Kamau, Nicholas	02/09/2026	
No Further Penalty		

LINKED SENTENCES:

Link 1

CP-51-CR-0000401-2025 - Seq. No. 1 (18 § 3121 §§ C) - Confinement is Consecutive to
CP-51-CR-0000402-2025 - Seq. No. 1 (18 § 3121 §§ C) - Confinement is Consecutive to
CP-51-CR-0000402-2025 - Seq. No. 2 (18 § 3123 §§ A6) - Confinement

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Illon Ross Fish
Private

Supreme Court No: 201594

Rep. Status: Active

Phone Number(s):

215-732-3474 (Phone)
215-593-9484 (Mobile)

Address:

1515 Market St Ste 1200
Philadelphia, PA 19102-3510

Representing: Martinez, Carmelo

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/16/2025		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/16/2025		Simmons, Karen Y.
Bail Set - Martinez, Carmelo			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/23/2025		Fish, Illon Ross
Entry of Appearance			
4	01/24/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/30/2025		Krasner, Larry
Information Filed			
4	02/18/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	02/18/2025		Shaffer, Zachary C.
Pre-Trial Conference Held			
5	03/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	03/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
9	03/13/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	03/13/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
1	04/07/2025		Philadelphia County District Attorney's Office
Motion for Consolidation			
1	05/05/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
1	06/02/2025		Kamau, Nicholas
Order Granting Motion for Consolidation			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
2	06/02/2025		Kamau, Nicholas
Order Granting Motion for Consolidation			
1	07/02/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
1	07/08/2025		Kamau, Nicholas
Commonwealth Advance Request For Continuance			
2	07/08/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate CP Attorney Attachments 07/08/2025			
3	07/08/2025		Court of Common Pleas - Philadelphia County
Counsel Attached for Trial			
8	07/08/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	07/08/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/04/2025		Fish, Illon Ross
Motion for Release Pursuant to Rule 600			
4	09/04/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/19/2025		Kamau, Nicholas
Commonwealth Request For Continuance To File Motion			

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5	09/19/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/26/2025		Kamau, Nicholas
Order Granting Motion to Revoke Bail			
2	09/26/2025		Kamau, Nicholas
Order Granting Motion to Revoke/Release and Forfeit Bail - Martinez, Carmelo			
1	10/02/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
2	10/02/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate CP Attorney Attachments 10/02/2025			
3	10/02/2025		Court of Common Pleas - Philadelphia County
Counsel Attached for Trial			
1	10/14/2025		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Short Certificate Philadelphia County Sheriff's Office 10/14/2025			
5	10/14/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	10/14/2025		Kamau, Nicholas
Jury Sworn			
7	10/14/2025		Kamau, Nicholas
Proposed Jury Instructions			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
8	10/14/2025		Kamau, Nicholas
Jury Selection			
9	10/14/2025		Kamau, Nicholas
Jury Selection Completed			
4	10/15/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	10/15/2025		Kamau, Nicholas
Jury Sworn			
6	10/15/2025		Kamau, Nicholas
Defendant Arraigned and Notice of Rights and Procedures Explained			
7	10/15/2025		Kamau, Nicholas
Opening Statements			
8	10/15/2025		Kamau, Nicholas
Testimony Begins			
9	10/15/2025		Kamau, Nicholas
Order Entering an Exhibit			
10	10/15/2025		Kamau, Nicholas
Prosecution Rests			
1	10/16/2025		Kamau, Nicholas
Testimony Begins			
2	10/16/2025		Kamau, Nicholas
Defense Rests			
6	10/16/2025		Kamau, Nicholas
Closing Arguments			
7	10/16/2025		Kamau, Nicholas
Jury Charged			

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8	10/16/2025		Kamau, Nicholas
Jury Retires for Deliberation			
1	10/17/2025		Kamau, Nicholas
Jury Deliberation Resumes			
2	10/17/2025		Kamau, Nicholas
Jury Returns with Verdict			
3	10/17/2025		Kamau, Nicholas
Guilty			
4	10/17/2025		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			
1	01/06/2026		Fish, Illon Ross
Memorandum of Law			
4	01/09/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/09/2026		Kamau, Nicholas
Commonwealth Request For Continuance Specially Assigned ADA/Unavailable			
1	02/09/2026		Kamau, Nicholas
Order - Sentence/Penalty Imposed			
3	02/09/2026		Court of Common Pleas - Philadelphia County
Penalty Assessed			
4	02/09/2026		Court of Common Pleas - Philadelphia County Kamau, Nicholas
Court Commitment State or County Correctional Institution			
Philadelphia County Sheriff's Office			
02/09/2026			
Philadelphia Department of Prisons			
02/09/2026			

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<u>Service To</u>	<u>Service By</u>		
<u>Issue Date</u>	<u>Service Type</u>	<u>Status Date</u>	<u>Service Status</u>
5	02/09/2026		Kamau, Nicholas
Order Entering an Exhibit			
1	02/19/2026		Fish, Illon Ross
Post-Sentence Motion			
1	02/26/2026		Fish, Illon Ross
Motion to Withdraw as Counsel			
3	04/15/2026		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
1	05/20/2026		Kamau, Nicholas
Order Denying Post-Sentence Motion			

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CASE FINANCIAL INFORMATION

Last Payment Date: 02/27/2026

Total of Last Payment: -\$12.50

Martinez, Carmelo Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
ATJ	\$6.00	\$0.00	\$0.00	\$0.00	\$6.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
CQS Fee Felony (Philadelphia)	\$100.00	\$0.00	\$0.00	\$0.00	\$100.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$26.70	\$0.00	\$0.00	\$0.00	\$26.70
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$39.00	\$0.00	\$0.00	\$0.00	\$39.00
Crime Victim Services and Compensation (Act 77 of	\$60.00	\$0.00	\$0.00	\$0.00	\$60.00
Criminal Lab Fee (Philadelphia)	\$135.00	\$0.00	\$0.00	\$0.00	\$135.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
Judicial Computer Project	\$8.00	\$0.00	\$0.00	\$0.00	\$8.00
OAG - JCP	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
State Court Costs (Act 204 of 1976)	\$17.80	\$0.00	\$0.00	\$0.00	\$17.80
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Civil Judgment/Lien (Philadelphia)	\$116.69	\$0.00	\$0.00	\$0.00	\$116.69
Costs/Fees Totals:	\$1,075.44	(\$50.00)	\$0.00	\$0.00	\$1,025.44
Grand Totals:	\$1,075.44	(\$50.00)	\$0.00	\$0.00	\$1,025.44

** - Indicates assessment is subrogated